

CHAPTER - 4

JOINT LIABILITY

COMMON INTENTION - SECTION 34

Section 34 of the Indian Penal Code deals with the provision of common intention. Section 34 is an interpretative provision and embodies the principle that if two or more persons intend to do a thing jointly, it is just the same as if each of them had done it individually. If the purpose or intention is common so must be the responsibility.

Section 34 states as follows:

Acts done by several persons in furtherance of common intention- When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone

ILLUSTRATION: Ankur, Amit, and Akriti plan to kill Shreyas near riverside. And as soon as they reach the spot to beat Shreyas, they found Amar, enemy of Shreyas. After knowing their plan, Amar gets along with them in order to warn them if anybody saw them killing Shreyas. Here Amar has joined them on the spot, but he is sharing common intention with all. Thus, Amar would also be liable for murder.

OBJECT OF SECTION 34:

It is a rule of evidence and does not create a substantive offence; its object is to find out the acts committed by individual members or to find out what part was taken by each of them in furtherance of common intention of all.

It is framed to meet cases in which it may be difficult to distinguish between the acts of individual members of a party, or to prove exactly what part played by each of them.

The reason why all are deemed guilty in such cases is that the presence of accomplices gives encouragement, support and protection to the person actually committing the act.

ESSENTIALS OF SECTION 34:

- (a) **CRIMINAL ACT:** The expression 'criminal act' includes within its ambit any word, gesture, deed or conduct of any kind on the

part of any one of them, active or passive, which tends to support the common design of committing a crime.

(b) **A CRIMINAL ACT MUST BE DONE BY SEVERAL PERSONS**

The criminal act in question must have been done by several persons i.e., by more than one person. The number of wrong doers should be at least two. Most importantly, if the criminal act was fresh and independent act springing wholly from the mind of the doer, the others are not liable merely because when it was done, they were intending to be partakers with the doer in a different criminal act.

(c) **THERE MUST BE A COMMON INTENTION**

Common intention implies a pre-arranged plan, prior meeting of minds, prior consultation in between all the persons constituting the group

It is not necessary that there must be a prior conspiracy or pre-meditation, the common intention can be formed in the course of the occurrence as well.

(d) **THERE MUST BE A PARTICIPATION OF ALL IN THE COMMISSION IN RELATION TO THAT COMMON INTENTION.**

The participation in a criminal act of a group is a condition precedent in order to fix joint liability and there must be some overt act indicative of a common intention to commit an offence. The law requires that the accused must be present on the spot during the occurrence of the crime and take part in its commission; it is enough if he is present somewhere nearby

AMENDMENT IN SECTION 34

The words "in furtherance of the common intention of all" were added to section 34 after words 'persons' in 1870.

CASE LAW: BARENDRA KUMAR GHOSH VS. KING EMPEROR

FACTS IN BRIEF: Few persons planned for post office robbery. Mr. B was told to stay outside and to watch and warn others. They went inside and demanded money and when post master resisted, they killed him. Mr. B was arrested, and tried under Secs. 34/302 as according to prosecution he was one of three men who fired at the Postmaster. The accused denied this charge on the ground that he was simply standing outside and had not fired at the deceased

HELD: Even if Mr. B did nothing as he stood outside the door, it is to be remembered that in crimes as in other things they also serve who only stand and wait. Sec. 34 deals with doing of separate act, similar or diverse by several persons; if all are done in furtherance of a common intention, each person is liable for the result of them all as if he had done them himself

CASE LAW: MEHBOOB SHAH V. EMPEROR

FACTS IN BRIEF: Mr. A was taking a bath in the river. Mr. B, in spite of repeated warnings from Mr. A, collected reeds and started for the return journey. In the meantime, Mr. C, nephew of Mr. A arrived at the spot and tried to snatch the bundle of reeds from Mr. B's possession and also gave him a blow with a stick. Consequently, B picked up a 'Lari' and struck C, who shouted for help. Mr. D and Mr. A whereupon appeared on the scene with loaded guns in their hands. When Mr. B and his companion Mr. E tried to escape away from the scene, Mr. D fired at Mr. B who fell down, died on the spot. Mr. A also fired at Mr. E causing injury to him.

HELD: There was no common intention. One need to proof the circumstances evidence to prove the common intention. There was no sharing of knowledge, no opportunity as such. Mr. A cannot be held for common intention.

COMMON OBJECT - SECTION 149

Common object is dealt within Section 149 of IPC. Section 149, like Section 34, is the other instance of constructive joint liability. Section 149 creates a specific offence. It runs as under:

"If an offence is committed by any member of an unlawful assembly in prosecution of the common object of that assembly, or such as the members of that assembly knew to be likely to be committed in prosecution of that object, every person who, at the time

of the committing of that offence, is a member of the assembly, is guilty of that offence."

ILLUSTRATION: A, B, C, D, E, and F formed an unlawful assembly. They split themselves into two groups to simultaneously attack the G. They did not meet in one place before committing the crime. It will be constituted as a common object.

ILLUSTRATION: One member, Mr. A, of the unlawful assembly diverged from the initial plan of just thrashing Mr. B. Instead, he pulled out a knife and stabbed him. Since the initial plan which was mutually decided by the members was to not cause any fatal injury to Mr. B and it was only Mr. A who made a sudden decision of killing the victim. The rest of the members were not liable murder since the common object was not to kill.

ELEMENTS OF SECTION 149:

1. There must be an unlawful assembly (5 or more persons), as defined in Section 141;
2. Criminal act must be done by any member of such assembly;
3. Act done is for prosecution of the common object of the assembly or such which was likely to be committed in prosecution of the common object;
4. Members have voluntarily joined the unlawful assembly and knew the common object of the assembly.
5. Mere presence and sharing of common object of the assembly makes a person liable for the offence committed even if he had no intention to commit that offence.

SCOPE OF SECTION 149:

(1) IN PROSECUTION OF THE COMMON OBJECT: It show that the offence committed was immediately connected with the common object of the unlawful assembly of which accused were members. The act must have been done with a view to accomplish the common object of the unlawful assembly.

(2) MEMBERS KNEW TO BE LIKELY: The second part relates to a situation where the members of the assembly knew that the offence is likely to be committed in prosecution of the common object. A thing is likely to happen only when the situation is like "it will probably happen" or "may very well happen". The word 'knew' indicates a state of mind at the time of commission of an offence, knowledge in this regard must be proved. The word 'likely' means some clear evidence that the unlawful assembly had such a knowledge.

DISTINCTION BETWEEN COMMON INTENTION AND COMMON OBJECT

COMMON INTENTION	COMMON OBJECT
The number of persons must be more than one	The number of persons must be five or more.
It does not create any specific offence but only states a rule of evidence	It creates a specific offence.
It requires prior meeting of minds or pre-arranged plan	Prior meeting of minds is not necessary. Mere membership of an unlawful assembly at the time of commission of the offence is sufficient.
Active participation is necessary	It does not require active participation and the liability arises by reason of mere membership of the unlawful assembly with a common object.